

2010 WL 4959799 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Emilisa CASANOVA and Tatiana Macia, Plaintiff,

v.

CITY OF NEW YORK, New York City Police Department, Officer, Police Officer
Manolin Molina of the PSA 7 precinct, shield number 27653, Defendants.

No. 309619-2010.
November 18, 2010.

Summons

Law Offices of Jason A. Steinberger, LLC, Attorney for Plaintiff, 505 Eighth Avenue, Suite 701, New York, NY 10018, (646) 256-1007.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose and defendant resides in New York County.

Dated: October 9, 2010 New York, NY 10451

VERIFIED COMPLAINT

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint, alleges upon information and belief as follows:

AS AND FOR A FIRST CASUE OF ACTION

1. That at all times hereinafter mentioned, Plaintiffs Emilisa Casanova, (hereinafter referred to a "CASANOVA") is resident of Bronx County, State of New York County of Bronx.
2. That at all times hereinafter mentioned, Plaintiffs Tatiana Macias, (hereinafter referred to a "MACIAS") is resident of Bronx County, State of New York County of Bronx.
3. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

4. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
5. That at all times hereinafter mentioned, Police Officer Manolin Molina, (hereinafter referred to as “MOLINA”) of the PSA 7 Precinct was employed by the New York City Police Department.
6. That the above individual Police Officers (hereinafter referred to as “POLICE OFFICERS”) are sued both individually and in their official capacities. At all times pertinent hereto, Defendant POLICE OFFICERS were employed by Defendant City of New York and the New York City Police Department.
7. On or about November 30, 2009 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiff's claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
8. On or about January 29, 2010 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiff's claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
9. That on or about September 5, 2010, at approximately 4:00AM Plaintiff MACIAS was attacked by Miguel Davila (hereinafter referred to as “DAVILA”) in the vicinity of Melrose Avenue and East 154 Street.
10. That Plaintiff CASANOVA came to MACIAS' aid by trying separate MACIAS and DAVILA.
11. That Defendant MOLINA then approached Plaintiffs and DAVILA and sprayed mace towards Plaintiffs and DAVILA striking MACIAS in her eyes and DAVILA in his eyes with said mace.
12. That as a result a result of being sprayed with mace MACIAS sustained a substantial burning sensation in her eyes, redness, swelling resulting in substantial pain and an inability to fully open her eyes.
13. That MOLINA and police officer **Keith Hockaday** (hereinafter referred to as “HOCKADAY”) then forced DAVILA to the ground.
14. That while DAVILA was forced to the ground by MOLINA and HOCKADAY, Plaintiffs each directed DAVILA to refrain from moving and to calm down.
15. That MOLINA removed what appeared to be a firearm and point the firearm towards Plaintiffs while stating “SHUT THE FUCK UP.”
16. That Plaintiffs were then directed to leave by an unknown male police officer in plain clothes and the unknown police officer pushed CASANOVA.
17. That Plaintiffs walked to the PSA 7 precinct to report that a police officer had a pointed what a appeared to be a firearm towards them and stated “SHUT THE FUCK UP” and to receive medical attention for MACIAS.
18. That MACIAS requested medical attention from numerous police officers inside of the PSA 7 precinct.
19. That MACIAS went into a bathroom inside of the PSA 7 precinct and rinsed her eyes out with water.

20. That while Plaintiffs then attempted to report that MOLINA had pointed what appeared to be a firearm at them and stated “SHUT THE FUCK UP” to an unknown female police officer inside of PSA 7, two unknown male Hispanic police officers entered the PSA 7 precinct.

21. That the two unknown male Hispanic police officers spoke with the unknown female officer and that the two unknown male Hispanic police officers then arrested Plaintiffs.

22. That at no time before, during or after Plaintiffs arrest did Plaintiffs assault, strike, punch, slap, kick, menace, harass or engage in any physical attack against MOLINA, HOCKADAY or any other police officer.

23. That at no time before, during or after Plaintiffs arrest did Plaintiffs interfere with any police officer from effectuating any arrest or from carrying out their lawful responsibilities.

24. That Defendant POLICE OFFICERS failed to conduct a thorough investigation of MOLINA's actions.

25. That Defendant POLICE OFFICERS failed to conduct a thorough investigation of MOLINA's actions by interviewing Plaintiffs.

26. That while Plaintiffs MACIAS and CASANOVA were each handcuffed.

27. That CASANOVA was removed to a bathroom inside of the PSA 7 precinct by an unknown female police officer wherein CASANOVA was directed to open her dress, pull down her underwear and squat down.

28. That during the entire time CASANOVA was in the bathroom, the bathroom door was open.

29. That CASANOVA requested that the door be closed and was told by the unknown female police officer conducting the search that the door did not close.

30. That CASANOVA observed at least one male police officer pass by the open door,

31. That MACIAS was removed to a bathroom inside of the PSA 7 precinct by an unknown female police officer wherein MACIAS was directed to move her bra around, pull down her pants, pull down her underwear and squat down.

32. That MACIAS observed as she was pulling up her pants that the bathroom door wa opened and observed at least one male police officer looking into the bathroom at MACIAS.

33. That while Plaintiffs were inside of the PSA 7 precinct, they were each held in a holding cell occupied with other females for approximately four (4) hours before being removed to Central Booking, Bronx County Criminal Court, located at 215 East 161 Street, Bronx, NY.

34. That members of the New York City Police Department transported Plaintiffs CASANOVA and MACIAS to the Bronx County Criminal Court, Central Booking, located at 215 East 161 Street, Bronx, NY where each Plaintiff was held in a jail cell occupied by other females for approximately thirty (30) hours.

35. That on or about September 6, 2009 Plaintiffs MACIAS and CASANOVA were each arraigned in Bronx County Criminal Court on dockets 2009BX057556 and 2009BX057557, respectively, charging them each with 1) Assault in the Second Degree, a class D Felony; 2) Assault in the Third Degree, a class A misdemeanor; 3) Resisting Arrest, a class A misdemeanor and 4) Obstruction of Governmental Administration, a class A misdemeanor.

36. That Plaintiffs MACIAS and CASANOVA were each released on their own recognizance and that each case was adjourned to part A for October 27, 2009.

37. That as of the date of this complaint, the above criminal cases have not been resolved.

38. That defendant POLICE OFFICERS acted with actual malice toward Plaintiffs MACIAS and CASANOVVA and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiffs.

39. That the actions of Defendant POLICE OFFICERS constituted unreasonable deprivation of liberty without due process of law.

40. That as a result of the Defendants actions on September 5, 2009, Plaintiffs were traumatized and have feared for their physical safety when the see and encounter members of the New York City Police Department from that day and onward.

41. That as a result of the Defendants actions, Plaintiffs have been unable to sleep.

42. That as a result of the Defendants actions. Plaintiffs were forced to miss multiple days of work.

43. That as a result of Defendants actions Plaintiffs sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MOLINA**

44. Plaintiff CASANOVA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43, as if more fully stated herein at length.

45. The intentional verbal abuse, false arrest and false imprisonment by Defendant POLICE OFFICERS violated the rights of the Plaintiff CASANOVA as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

46. Defendant POLICE OFFICERS having no lawful authority to arrest Plaintiff CASANOVA, did, nevertheless, unlawfully arrest plaintiff with actual malice toward Plaintiff CASANOVA and with willful and wanton indifference to and deliberate disregard for the constitutional rights of the Plaintiff CASANOVA. Thus Plaintiff CASANOVA is entitled to both compensatory and exemplary damages.

**AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST THE CITY, NEW
YOKR CITY POLICE DEPARTMENT AND POLICE OFFICER MOLINA**

47. Plaintiff CASANOVA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 46, as if more fully stated herein at length.

48. Defendant POLICE OFFICERS conspired to violate Plaintiff CASANOVA'S statutory civil rights in violation of [42 U.S.C. sec.1983](#), et al as well as the corresponding sections of the New York State Constitution, for which Defendant POLICE OFFICERS are individually liable. Thus Plaintiff CASANOVA is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MOLINA**

49. Plaintiff CASANOVA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 48, as if more fully stated herein at length.

50. Plaintiff CASANOVA was verbally abused, falsely arrested and falsely imprisoned by Defendant POLICE OFFICERS in a manner that was extreme, outrageous and unjustified and caused Plaintiff CASANOVA to suffer physical and severe emotional distress for which Defendant POLICE OFFICERS are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff CASANOVA by Defendants POLICE OFFICERS was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff CASANOVA. Plaintiffs are thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MOLINA**

51. Plaintiff CASANOVA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 50, as if more fully stated herein at length.

52. At all times pertinent hereto, Defendant POLICE OFFICERS were acting within the scope of their employment as officers of the City of New York and New York City Police Department.

53. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that Defendant POLICE OFFICERS committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MOLINA**

54. Plaintiff CASANOVA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 53, as if more fully stated herein at length.

55. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff CASANOVA. Plaintiff CASANOVA is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MOLINA**

56. Plaintiff CASANOVA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 55, as if more fully stated herein at length.

57. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff CASANOVA.

58. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff CASANOVA.

**AS AND FOR A EIGHTH CAUSE OF ACTION AGAINST CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MOLINA**

59. Plaintiff MACIAS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 58, as if more fully stated herein at length.

60. The intentional verbal abuse, false arrest and false imprisonment by Defendant POLICE OFFICERS violated the rights of the Plaintiff MACIAS as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

61. Defendant POLICE OFFICERS having no lawful authority to arrest Plaintiff MACIAS, did, nevertheless, unlawfully arrest plaintiff with actual malice toward Plaintiff MACIAS and with willful and wanton indifference to and deliberate disregard for the constitutional rights of the Plaintiff MACIAS. Thus Plaintiff MACIAS is entitled to both compensatory and exemplary damages.

**AS AND FOR A NINTH CAUSE OF ACTION AS AGAINST THE CITY, NEW
YOKR CITY POLICE DEPARTMENT AND POLICE OFFICER MOLINA**

62. Plaintiff MACIAS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 62, as if more fully stated herein at length.

63. Defendant POLICE OFFICERS conspired to violate Plaintiff MACIAS' statutory civil rights in violation of 42 U.S.C. sec. 983, et al as well as the corresponding sections of the New York State Constitution, for which Defendant POLICE OFFICERS are individually liable. Thus Plaintiff MACIAS is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A TENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MOLINA**

64. Plaintiff MACIAS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 63, as if more fully stated herein at length.

65. Plaintiff MACIAS was verbally abused, falsely arrested and falsely imprisoned by Defendant POLICE OFFICERS in a manner that was extreme, outrageous and unjustified and caused Plaintiff MACIAS to suffer physical and severe emotional distress for which Defendant POLICE OFFICERS are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff MACIAS by Defendants POLICE OFFICERS was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff MACIAS. Plaintiffs are thus entitled to compensatory and exemplary damages.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK, NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MOLINA**

66. Plaintiff MACIAS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 65, as if more fully stated herein at length.

67. At all times pertinent hereto, Defendant POLICE OFFICERS were acting within the scope of their employment as officers of the City of New York and New York City Police Department.

68. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that Defendant POLICE OFFICERS committed within the scope of their employment.

**AS AND FOR A TWELFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MOLINA**

69. Plaintiff MACIAS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 68, as if more fully stated herein at length.

70. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK, NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MOLINA**

71. Plaintiff MACIAS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 70, as if more fully stated herein at length.

72. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff MACIAS.

Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff MACIAS.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason A. Steinberger, Esq.

Attorney for Plaintiffs

505 Eighth Avenue

Suite 701

New York, NY 10018

(646) 256-1007